

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2012-1903

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
ROSALIND SMITH, LPC NO. 3645,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Rosalind Smith ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was issued a license to practice as a professional counselor ("LPC") in the State of Colorado on November 30, 2003, being issued license number 3645, which expired on August 31, 2013.
3. This Order is a full and final resolution of Case No. 2012-1903. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around November 16, 2009, Respondent pled guilty to DWAI, a misdemeanor, in Case No. 2009T2973 in County Court, Douglas County, Colorado. She was sentenced to twelve (12) months of supervised probation.
 - b. On or around October 31, 2011, Respondent was drinking alcohol while on duty providing on-call emergency mental health services. While on corrective action, Respondent reported to work on November 21, 2011, with a BAC of .089. This resulted in the immediate termination of her employment.
 - c. On or around June 5, 2012, Respondent entered into a Stipulation and Final Agency Order with the Board in case number 2012-6396 and agreed to not engage in the practice of professional counseling pending the

outcome of a mental status evaluation, to include substance abuse and a determination of the level of care, if any, required for Respondent.

- d. On or around October 17, 2012, Respondent pled guilty to DUI, a misdemeanor, in Case No. 2012T18, in County Court, Bent County, Colorado. She was sentenced to three hundred sixty five (365) days in jail, of which three hundred fifty four (354) days were suspended, and two (2) years of supervised probation.
- e. On or around December 12, 2012, Respondent pled guilty to DUI, a misdemeanor, in Case No. 2011T149, in County Court, Baca County, Colorado. She was sentenced to ninety (90) days in jail, of which eighty (80) days were suspended, and two (2) years of supervised probation to run concurrently with Case No. 2012T18.
- f. On or around April 19, 2014, Respondent submitted to a mental status evaluation, and the evaluator recommended that Respondent enter into a rehabilitation contract with Peer Assistance Services.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §12-43-222(1)(e), C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

7. Respondent is not currently licensed to practice or practicing professional counseling in the State of Colorado. Should Respondent seek to resume the practice of professional counseling in the State of Colorado, she must first notify the Board in writing of her intent to resume practice in the State of Colorado.

PROBATION

8. If Respondent is reinstated as a LPC, and the Board authorizes Respondent to resume practice in the State of Colorado, Respondent shall be on probation. The Board will not authorize Respondent to resume the practice of professional counseling in the State of Colorado until a Board-approved practice monitor is in place.

9. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for five (5) years commencing from the date that the Board authorizes Respondent to resume practice, or the date Respondent's therapist and practice monitor are approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

10. The period of probation is tolled during any time that Respondent is not practicing as a LPC in this state, and such period of probation shall resume at such time as Respondent resumes practicing as a LPC in the State of Colorado in accordance with this Order.

11. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC in Colorado, is undergoing therapy and practice monitoring, and is in full compliance with all terms of this Order.

12. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Any request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PEER ASSISTANCE SERVICES ("PAS")

13. Prior to resuming the practice of professional counseling in the State of Colorado, Respondent is required to enter into a contract with PAS. As a term of probation, Respondent shall successfully complete her PAS contract, including any recommended extensions of the contract. Respondent shall not practice professional counseling at any time that PAS finds she is not safe to practice.

14. Respondent shall comply fully and in a timely manner with all requirements, recommendations and directions of her PAS contract and her treatment program.

15. Respondent hereby waives any right to or claim of confidentiality to any information, test results or other data pertaining to Respondent's rehabilitation progress, or lack thereof, with PAS, and will execute a release authorizing to release reports containing any and all information pertaining to Respondent on a quarterly basis, submitted directly to the Board. Respondent shall keep all releases current and in effect. Respondent shall cease the practice of professional counseling at any time that such releases are not current and in effect.

16. If Respondent satisfactorily completes the treatment program, verification to the Board by PAS of the satisfactory completion of the program shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify her satisfactory completion of the program.

17. Respondent must immediately notify the Board in writing if she withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in her approved PAS program. Should this happen, Respondent shall immediately cease the practice of professional counseling.

18. During the period of probation, Respondent shall refrain from and cease any practice of professional counseling if directed by PAS or the Board until PAS verifies that she can safely return to practicing professional counseling without risk to herself or the general public.

PSYCHOTHERAPY

19. Prior to resuming the practice of professional counseling in the State of Colorado, Respondent must have a Board-approved mental health provider ("therapist") in place. During the term of probation, and as part of her contract with PAS, Respondent shall undergo psychotherapy. Within 30 days of the effective date of this Order, Respondent shall submit, in

writing, three proposed therapists for the Board's approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria:

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapist have a minimum of five years of experience and has not been subject to professional discipline;
- c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

20. After the Board's written approval of the therapist, Respondent and the therapist shall enter into a written contract for psychotherapy. Respondent shall not perform any act requiring a license to practice professional counseling until such time as the Board has approved Respondent's therapist and Respondent and therapist have entered into a written contract for monitoring.

21. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of PAS and/or the therapist; and
- b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for her clients, and must send a copy of each report to the therapist and Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every month thereafter for the first 12 months. After submission of the first 12 reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and
- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

22. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to the therapist and Respondent when s/he sends the report to the Board. Upon

submission of such a report, Respondent shall immediately cease the practice of professional counseling.

23. Either Respondent or her therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of professional counseling until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

24. Respondent cannot practice professional counseling during the period of probation if she is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

PRACTICE MONITOR

25. Prior to resuming the practice of professional counseling in the State of Colorado, Respondent must have a Board-approved practice monitor ("practice monitor") in place. During the term of probation, Respondent's practice shall be monitored by the practice monitor. If the Board has not already approved Respondent's practice monitor, Respondent must follow the same steps as outlined in paragraph 19 above in order to secure a practice monitor.

26. Respondent must have a practice monitor approved by the Board within two months after entering into a contract with PAS. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

27. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

28. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once each month. Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

29. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first

12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

30. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

31. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

32. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

33. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

34. During the period of probation, Respondent shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Respondent. Respondent shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

35. Respondent agrees to random urinalysis testing at least once each month monitored and administered by a Board-approved agency to insure compliance with this Order. Respondent shall continue to submit to urinalysis testing, monitored and administered by a Board-approved agency, on randomly-selected days on a frequency to be determined by the agency and approved by the Board. Respondent shall sign a release and/or execute any necessary waiver to ensure that PAS and/or her therapist may report her progress and compliance with this Order to the Board.

TERMS AND CONDITIONS

36. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

37. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

38. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

39. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

40. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

41. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

42. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

43. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

44. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

45. Respondent shall obey all state and federal laws while this Order is in effect.

46. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

47. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

48. This Order shall be admissible as evidence at any hearing held before the Board.

49. This Order shall be a public record in the custody of the Board.

ACCEPTED AND AGREED BY:

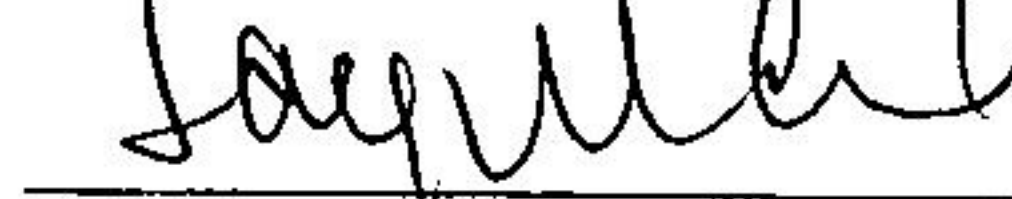
RESPONDENT



ROSALIND SMITH
LPC NO. 3645

ACCEPTED AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELORS



JACQUILINE ARCELIN
Program Director

Effective Date: This 28th day of

July, 2014.